

Form 24 – Notice to admit facts

Industrial Relations Act 2016, section 989
Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

seal

Applicant/Appellant:	Cory Lea Shepherd
----------------------	-------------------

V

Respondent:	
-------------	--

PLEASE NOTE:
If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

To:	
-----	--

Take notice that the ○ applicant ○ appellant ● respondent in this proceeding proposes to prove the facts specified below, and if you do not within 14 days serve a notice on the ○ applicant ○ appellant ● respondent disputing the facts you are taken to admit, for this proceeding only, the facts specified in this notice.

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
1	On 17–18 March 2024 , the Appellant was rostered to finish work at 23:00 and commence his next shift at 06:00, resulting in a break of only 7 hours (Exhibit C2) .	
2	In the Review Decision dated 24 October 2024 (Exhibit B1 , p. 27), the Review Officer found that rostering the Appellant with a 7-hour break " <i>amounted to unreasonable management action</i> ".	
3	The Employer's "Fatigue Risk Management Policy" (Exhibit F1) and the relevant Award require a minimum break of 10 hours between shifts, or 8 hours by written agreement.	
4	No written agreement existed for the Appellant to work an "Eight-hour break" shift pattern in March 2024.	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
5	Ms. Tammy Reese admitted in an email dated 7 August 2023 : <i>"I do realise in this instance there was a rostering error that was accidentally made by Chloe with regards to night shifts"</i> (Exhibit E1 , p. 20).	
6	On 6 June 2023 , Line Manager Ms. Chloe Taylor removed a page containing the Appellant's handwritten entry from the workplace Communication Book (Exhibit I2).	
7	The entry removed by Ms. Taylor contained operational information regarding the necessity of verifying and updating doctors' contact details.	
8	Maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety.	
9	By removing this entry without consultation, Ms. Taylor prevented the communication of safety-critical information to other staff members.	
10	In an email to Ms. Reese dated 6 June 2023 at 4:05 PM (Exhibit E1 , p. 10), Ms. Taylor referred to the Communication Book—a government record—as a <i>"burn book"</i> .	
11	The term "Burn Book" is a specific pop-culture reference to the film <i>Mean Girls</i> , describing a book used to spread rumours, insults, and social gossip.	
12	Ms. Taylor's characterisation of a safety-related record as a "burn book" indicates she viewed the workplace through a social clique lens rather than an objective professional assessment.	
13	Ms. Carolyn Jeffrey (witness) provided a statement (Exhibit I2) corroborating that Ms. Taylor <i>"rips the page out"</i> and confirmed the action was <i>"humiliating for Cory"</i> .	
14	In the email to Ms. Reese dated 6 June 2023 (Exhibit E1 , p. 10), Ms. Taylor explicitly admitted: <i>"I did raise my voice and asked him to please stop talking over the top of me."</i>	
15	Ms. Jeffrey's statement (Exhibit I2) corroborates this event, stating Ms. Taylor <i>"yelled at Cory over something that did not warrant her reaction"</i> .	
16	Raising one's voice at a subordinate in an open office environment constitutes unprofessional conduct and is not "reasonable management action".	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
17	The "Union Encouragement Policy" (QH-POL-248) (Exhibit F2) requires managers to take a "positive, supportive role" to facilitate union membership and delegate elections.	
18	The Appellant notified management of his intent to become a Union Delegate on 11 August 2023 (Exhibit F3).	
19	Management failed to facilitate a vote or provide necessary delegate information to the Appellant for a period exceeding 9 months after his initial request.	
20	On 24 December 2024 , the Ethical Standards Unit (ESU) determined that the Appellant's complaint regarding Ms. Taylor and Ms. Reese constituted a Public Interest Disclosure (PID) (Exhibit E3).	
21	On 15 May 2024 , Director Tammy Reese sent an email directing the Appellant to "retract" an email he had sent inquiring about office hours (Exhibit E5).	
22	On 9 May 2024 , Ms. Taylor sent a substantively similar email regarding another staff member's hours, for which she was not directed to issue a retraction (Exhibit E5).	
23	The Respondent obtained the Appellant's full medical history (Exhibit A5) directly from "Our Medical Ashmore" on or before 8 July 2025 .	
24	The copy of Exhibit A5 filed by the Respondent bears the system-generated footer: "Printed on 8th July 2025".	
25	The Respondent did not serve a Form 29 Notice of Non-Party Disclosure on the Appellant prior to obtaining these records (breach of Rule 64E).	
26-31	<i>Items 26 to 31 are not included in this copy: they concern matters with no bearing on the medical questions.</i>	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
32	On 14 July 2025 , the Respondent's representative (Renee Matheson) emailed the Appellant stating she had " <i>received last week</i> " documents but did not disclose possession of Exhibit A5 (Exhibit H1) .	
33	Exhibit A5 (p. 52) contains a consultation record dated 16 November 2023 authored by Dr. Priyal De Silva Nanayakkara.	
34	The entry dated 16 November 2023 explicitly states: " <i>No psychological illness such as depression/ psychosis.</i> "	
35	The Respondent is not in possession of any contemporaneous medical evidence prior to 2024 that contradicts the finding in Item 34.	
36	The Work Capacity Certificate issued by Dr. Peter Hawes dated 1 July 2024 (Exhibit A1) identifies the mechanism of injury as " <i>ongoing breaking of workplace rules by bosses, victimizing him</i> ".	
37	In the Review Decision (Exhibit B1 , p. 16), the Regulator stated: " <i>I am satisfied your employment was a significant contributing factor to the psychological injury</i> ".	
38	Dr. Ravikumar Krishnaiah (Psychiatrist) diagnosed the Appellant with Major Depressive Disorder on 13 February 2025 (Exhibit A4) .	

No.	Fact to be Admitted (with Exhibit Reference)	Admit / Deny
39	Dr. Krishnaiah opined that premature exposure to the workplace is likely to result in <i>"significant deterioration in my mental health"</i> (Exhibit A4 , p. 5).	
40	On 3 May 2024 , Payroll Officer Elaine Grant sent an email to Ms. Taylor instructing her to <i>"submit an AVAC to correct these shifts"</i> for the Appellant (Exhibit E2).	
41	Ms. Taylor did not submit the required AVAC until 28 May 2024 (Exhibit D2), a delay of 25 days despite the explicit written instruction from Payroll.	
42	Exhibit D1 (Employee Payslip Comparison) demonstrates a total gross pay for the comparator employee of \$18,169.14 over the sample period.	
43	Exhibit D1 demonstrates a total gross pay for the Appellant of \$12,757.68 over the same period.	
44	This represents a gross pay disparity of \$5,411.46 (approximately 42%) to the Appellant's detriment.	
45	This wage gap was caused primarily by the differential allocation of penalty-rate shifts (weekends and public holidays) to the comparator employee rather than the Appellant.	
46	On 21 May 2024 at 12:33 PM , Ms. Taylor emailed the Appellant stating: <i>"I am waiting payroll confirmation... as soon as I do get that confirmation, I will submit an AVAC"</i> (Exhibit E2 , p. 236).	
47	At the time of sending the email described in Item 46, Ms. Taylor had already been in possession of written instructions from Payroll Officer Elaine Grant since 3 May 2024 (Exhibit E2 , p. 237).	
48	Ms. Taylor's statement on 21 May 2024 that she was "waiting payroll confirmation" was false or misleading, as the instruction had been provided to her 18 days earlier.	
49	This conduct demonstrates a lack of diligence and transparency in managing the Appellant's financial entitlements.	
50	In the Review Decision (Exhibit B1), the Regulator attributed the payroll errors to "human error," but failed to address the misleading statement made by Ms. Taylor on 21 May 2024.	

Signature:	
Print name:	
Title of office held:	

Date:

____ / ____ / _____

Respondent's response to the appellant's notice to admit facts

Industrial Relations Act 2016, section 989
Industrial Relations (Tribunals) Rules 2011, rules 41 and 49

seal

Appellant:	Cory Shepherd
------------	---------------

v

Respondent:	Workers' Compensation Regulator
-------------	---------------------------------

PLEASE NOTE: If there are more than two parties to this application, please complete a **Form 1 – Parties list** and file it with this form.

To:	Cory Shepherd
-----	---------------

Take notice that the Respondent in this proceeding responds to the Appellant's notice to admit facts as follows:

	Respondent's Response
1.	With respect to paragraph 1, admits the facts contained therein.
2.	With respect to paragraph 2, does not admit the fact contained therein because the appeal is a hearing de novo and it is for the Commission to determine if this fact amounted to unreasonable management action.
3.	With respect to paragraph 3, admits the facts contained therein.
4.	With respect to paragraph 4, denies the fact because in June 2020, the Appellant signed an agreement allowing an 8 hour break between shifts. This fact also appears at paragraph 34 of the Appellant's statement of facts and contentions, which have been filed in the Commission.
5.	With respect to paragraph 5, admits the facts contained therein.
6.	With respect to paragraph 6, admits that Ms Taylor removed a page from the workplace communications book but does not admit that the page contained the appellant's handwriting because the respondent does not have a copy of the page.
7.	With respect to paragraph 7, does not admit the facts contained therein because the Respondent does not have a copy of the document referred to and is unaware of its contents.
8.	With respect to paragraph 8, admits the facts contained therein and says that there was a procedure in place for this to occur.
9.	With respect to paragraph 9, denies as untrue the fact, because there was already a procedure in place.
10.	With respect to paragraph 10, does not admit the fact that the email dated 6 June 2023 at 4.05 pm Ms Taylor refers to the Communication book as a "burn book" because the email states that Ms Taylor

	Respondent's Response
	felt like the Communications Book was being used as a “burn book” and not being used a professional tool. Further the Respondent says the email as a whole, needs to be read to determine the meaning of the phrase and context. Further, the Respondent denies as untrue that the Communications book is a government record
11.	With respect to paragraph 11, does not admit the fact, because the Respondent it unsure of the relationship to the film Mean Girls.
12.	With respect to paragraph 12, denies as untrue because Ms Taylor identified the Communications Book as “a professional tool” that switchboard can use to communicate.
13.	With respect to paragraph 13, the respondent has viewed an email from Ms Jeffrey dated 18 July 2024 where she states the words “rips the page out” and “humiliating for Cory”
14.	With respect to paragraph 14, admits the facts contained therein.
15.	With respect to paragraph 15 the Respondent does not admit this fact because the Respondent has viewed an email from Ms Jeffrey dated 18 July 2024 where she states the words “ <i>yelled at cory over something that did not warrant her reaction</i> ” but confirms that she did not witness the event and was told about it by the Appellant.
16.	With respect to paragraph 16, denies as a fact, and says that the characterisation of any management action is a matter for determination by the Commission.
17.	With respect to paragraph 17, admits the Policy says words to that effect.
18.	With respect to paragraph 18, admits that the Appellant sent a text to Ms Taylor at 5.03pm that he was “just putting his hand up” but says that this was not a formal notification.
19.	With respect to paragraph 19, denies as untrue the facts, because: • the Appellant did not request assistance; • Ms Taylor did provide advice and support to the Appellant; • the Appellant was provided with delegate information.
20.	With respect to paragraph 20, admits the facts contained therein.
21.	With respect to paragraph 21, admits the facts contained therein but says there was no correlation between the two events. The Respondent says further that Ms Reese also emailed the Appellant about retracting the email on 21 May 2024 and all of the emails need to be read as a whole to determine the meaning and context
22.	With respect to paragraph 22, denies as untrue the facts, because the circumstances were different and did not require Ms Taylor to retract her email.
23.	With respect to paragraph 23, denies as untrue the fact that the Respondent obtained the Appellant’s full medical history and says that the Respondent obtained records in a date range in line with Form 29 - Notice of non-party disclosure, signed by a Senior Registry Officer on 4 July 2025, and the Respondent received the medical records some time before 16 July 2025.
24.	With respect to Paragraph 24 does not admit the facts, as there is no footer on the medical records but does admit the records state on page one that the records were printed on 8 July 2025. The Respondent is unable to verify the source of the date but admits that the Form 29 - Notice of non-party disclosure, was signed by a Senior Registry Officer on 4 July 2025 and that the medical records were received by the Respondent at some time before 16 July 2025.
25.	With respect to paragraph 25, admit the fact and says that the Respondent did not serve a Form 29 – Notice of Non-Party Disclosure on the appellant prior to obtaining the records and says there was no requirement to do so pursuant to section 64D <i>Industrial Relations (Tribunals) Rules</i> 2011. The Respondent denies as untrue that the Respondent breached Rule 64E.

	Respondent's Response
26.	With respect to paragraphs 26 to 29 denies the fact that details contained in the records are not relevant because, read as a whole, the medical records are relevant in that they tend to prove or disprove an allegation in the proceeding.
27.	With respect to paragraph 30, admits the fact that the Respondent served the medical records on the Appellant's solicitors on 22 July 2025 and says further the Respondent was not notified that the Appellant's solicitors no longer acted for the Appellant until 29 July 2025.
28.	With respect to paragraph 31, does not admit the facts because these are matters within the Appellant's knowledge.
29.	With respect to paragraph 32, admits that the Respondent sent an email directly to the Appellant on 14 July 2025 and says that the email addressed to the Appellant on that date was in error and that the email should have been sent to the Appellant's solicitors, because he was legally represented. The Respondent states that the medical records were not in the possession of the Regulator at the time of sending the email on 14 July 2025.
30.	With respect to paragraph 33, admits the fact that there is an entry from Dr Nanayakkara in the records but does not admit the accuracy of the record.
31.	With respect to paragraph 34, admits the entry is listed in the record, but does not admit the accuracy of the entry.
32.	With respect to paragraph 35, denies untrue the fact because the records show a past medical history of Anxiety and ADHD from 26 October 2022 which is missing from Exhibit A5.
33.	With respect to paragraph 36, admits the fact Dr Peter Hawes provided a medical certificate stating that the mechanism was "ongoing breaking of workplace rules by bosses, victimizing him" but denies that as a fact and further denies the date of the certificate is 1 July 2024 because the certificate is signed 8 September 2024.
34.	With respect to paragraph 37, admits the contents of the Respondent's review unit decision but says that this fact is not relevant because the appeal is a hearing de novo and it is for the Commission to determine. action
35.	With respect to paragraph 38, admits that the report does say that the Appellant was suffering from Major Depressive Disorder, but does not admit the accuracy of the report.
36.	With respect to paragraph 39, admits that the report does say: <i>"Given the complex workplace issues, ongoing WorkCover claim and disputed unfair dismissal proceedings and impaired decision making abilities it is unclear at this stage the work goal and return to work. I will further update on this after next consultation. Please note that premature exposure to the workplace is more likely result in significant deterioration in his mental health..."</i> , but does not admit the accuracy of the report.
37.	With respect to paragraph 40, admits the facts contained therein.
38.	With respect to paragraph 41, admits the fact that Ms Taylor submitted the AVAC on 28 May 2024 but also says that on 21 May 2024 Ms Taylor emailed the appellant stating she was waiting for payroll confirmation on a few issues and would submit an AVAC for the next pay run as soon as she received it.
39.	With respect to paragraphs 42 to 45, denies untrue the fact, because the comparator used does not represent a true comparator in the circumstances and because the roster was equitable.
40.	With respect to paragraph 46, admits the facts contained therein.

	Respondent's Response
41.	With respect to paragraphs 47, denies untrue the fact, because Ms Taylor needed confirmation from payroll and then she needed to be satisfied that the AVAC was accurate.
42.	With respect to paragraph 48, denies as untrue the fact, because the statement was not false or misleading.
43.	With respect to paragraph 49, denies as untrue the fact, because Ms Taylor's conduct does not lead to a conclusion that there was a lack of due diligence or transparency in managing the Appellant's financial entitlements.
44.	With respect to paragraph 50, admits the contents of the Respondent's Review Unit decision and says that this fact is not relevant because the appeal is a hearing de novo and it is for the Commission to determine. Does not admit that Ms Taylor made a misleading statement

Name:	Workers' Compensation Regulator		
Name of contact person:	Ms Renee Matheson		
Postal address:	150 Mary Street		
	Brisbane		4001
Phone number:	07 3842 2792	Fax number:	07 3811 6443
Mobile number:			
Email address:	Renee.Matheson@oir.qld.gov.au		
Signature:			
Date:	18/02/2026		